

obligated to follow established procedural law; her self-represented status does not grant the Court the power to bypass the mandatory statutory framework of the Discovery Act.

Discovery in California is strictly a "creature of statute" as defined in Code of Civil Procedure section 2019.010. This statutory exclusivity is the bedrock of judicial efficiency, ensuring that litigants follow a uniform roadmap. Deviations—such as the "freestanding motion" requested here—threaten to undermine the predictability of litigation. As established in *Holm v. Superior Court* (1986) 187 Cal.App.3d 1241 and reaffirmed in *Haniff v. Superior Court* (2017) 9 Cal.App.5th 191, the Court possesses no power to expand the authorized methods of discovery. When a party disputes the timeliness of responses or the preservation of objections, they must utilize the "device-specific" motions provided by the Act. If Plaintiff believes that the responses were untimely and there is a legal consequence to the untimely responses, Plaintiff needs to pursue specific remedies set forth in the discovery statutes pertaining to the particular type of discovery response.

Plaintiff's generalized request for an "Order Determining Discovery Deadlines" is not an authorized motion. The Court cannot create a non-statutory mechanism to resolve timing disputes in a vacuum.

The Court has an affirmative duty to discourage the misuse of the discovery process and the filing of frivolous motions. Under Code of Civil Procedure section 2023.010 and section 2023.030, the Court may impose sanctions for the misuse of process. Furthermore, Code of Civil Procedure section 128.5 (bad faith/frivolous actions) and section 128.7 (frivolous pleadings) protect judicial resources from meritless filings.

While self-represented litigants cannot recover attorney fees as a discovery sanction, they are subject to sanctions for "reasonable expenses incurred" by the opposing party, such as research and filing costs (*Kravitz v. Superior Court* (2001) 91 Cal.App.4th 1015). Tactics constituting a misuse of the discovery process include persisting in an attempt to obtain discovery through unauthorized methods, filing discovery motions without a proper statutory basis, or requesting "terminating sanctions" or a "waiver of all objections" as a first-measure remedy for a timing dispute.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2601194	VILLANUEVA vs COUNTY OF RIVERSIDE	DEMURRER ON COMPLAINT
CVRI2601194	VILLANUEVA vs COUNTY OF RIVERSIDE	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

Defendant County of Riverside's Demurrer is the overruled.

As to the Motion to Strike, it is granted to the extent it seeks to remove the reference to attorney's fees and costs under Labor Code section 1002.5.

To withstand a demurrer the complaint must contain "a statement of the facts constituting the cause of action, in ordinary and concise language." (C.C.P. § 425.10.) "[T]he complaint need only allege facts sufficient to state a cause of action, each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) Generally a plaintiff need only plead facts necessary "to acquaint a defendant with the nature, source and extent of his claims." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court's task is to treat well-pleaded allegations in the complaint as true and determine whether the complaint states facts sufficient to constitute a cause of action. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375.)

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) In ruling on a demurrer, the court may take into account only the challenged pleading and matters subject to judicial notice under E.C. §§451, 452. (C.C.P. §§430.30(a), 430.70; *Gould v. Maryland Sound Indus., Inc.* (1995) 31 Cal.App.4th 1137, 1144.) The sole issue raised by a demurrer is whether the facts pleaded state a valid cause of action, not whether they are true. Thus, no matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purposes of the demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 (citing *Del E. Webb Corp. v. Structural Material Co.* (1981) 123 Cal.App.3d 593, 604).) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant *cannot reasonably respond*—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) None of the causes of action are uncertain.

1ST CAUSE OF ACTION FOR DISABILITY DISCRIMINATION:

To state a prima facie claim of disability discrimination, a plaintiff must allege: “(1) he suffers from a disability; (2) he is otherwise qualified to do his job; and, (3) he was subjected to adverse employment action because of his disability.” (*Faust v. California Portland Cement Co.* (2007) 150 Cal.App.4th 864, 886.) The Complaint alleges that On April 20, 2023, Plaintiff sustained a traumatic brain injury (TBI) which left him with chronic migraines, PTSD, anxiety, nausea, tinnitus, blurred vision, and memory issues. Defendants were fully aware of Plaintiff’s disability through documented FMLA leave (April 20 to June 5, 2023) and medical accommodation letters from his treating physicians requesting 5-minute hourly breaks from screen time and fluorescent lighting. (Compl. ¶¶ 20-24). However, Defendants provided minimal accommodation and instead subjected Plaintiff to adverse employment actions beginning in February 2025. Supervisors further manufactured an appearance of underperformance by intentionally delaying and withholding seventeen of his case submissions in July 2025. (Compl. ¶¶ 42-47). Also, Plaintiff alleges that the stated performance grounds were a pretext to conceal discriminatory motives—noting that discharge documents deliberately omitted any reference to his disability or accommodation requests—causing him severe emotional distress, physical sickness, and lost earnings and benefits. The Complaint sufficiently states facts sufficient to constitute a disability discrimination claim.

2ND CAUSE OF ACTION FOR RETALIATION IN VIOLATION OF FEHA:

The elements of a claim for retaliation under FEHA are “(1) the employee’s engagement in a protected activity, i.e. opposing any practices forbidden under this part; (2) retaliatory animus on the part of the employer; (3) an adverse action by the employer; (4) a causal link between the retaliatory animus and the adverse action; (5) damages; and (6) causation.” (*Mamou v. Trendwest Resorts, Inc.* (2008) 165 Cal. App. 4th 686, 713.) The Complaint alleges that Plaintiff engaged in protected activities including requesting and taking approved medical leave under FMLA/CFRA for his traumatic brain injury (TBI) from April 20, 2023, to June 5, 2023; requesting reasonable workplace accommodations (including 5-minute hourly breaks from screen time and fluorescent lighting) supported by medical notes from his treating physicians; raising complaints regarding discriminatory treatment and reporting that supervisors deliberately manipulated his work records by withholding seventeen case submissions in July 2025 to create a false appearance of underperformance. (Compl. ¶¶ 20-24). Rather than accommodating his medical restrictions or investigating the record manipulation, Defendants escalated adverse actions against him. These retaliatory measures included issuing a below-standard performance evaluation, placing him on a Performance Improvement Plan (PIP) and Corrective Counseling Confirmation Memorandum, placing him on administrative leave on September 11, 2025, and terminating his employment effective October 2, 2025. (Compl. ¶¶ 42-47). This is sufficient to constitute a FEHA retaliation claim.

3RD CAUSE OF ACTION FOR FAILURE TO ACCOMMODATE:

To state a claim for failure to make a reasonable accommodation, a plaintiff must show (1) the plaintiff has a disability covered by FEHA, (2) the plaintiff is qualified to perform the essential functions of the position (is a “qualified individual”), and (3) the employer failed to reasonably accommodate the plaintiff’s disability. (*Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1009-1010.) A “reasonable accommodation” is “a modification or adjustment to the workplace that enables the employee to perform the essential functions of the job held or desired.” (*Nadaf-Rahrov v. Neiman Marcus Group, Inc.* (2008) 166 Cal.App.4th 952, 974.) Plaintiff alleged Defendants were fully aware that Plaintiff suffered from a traumatic brain injury (TBI) with ongoing symptoms, including chronic migraines, PTSD, anxiety, nausea, ringing in the ears, blurred vision, and memory issues. Plaintiff submitted requests for reasonable workplace accommodations supported by medical documentation from his treating physicians specifically requesting five-minute breaks per hour from screen time and fluorescent lighting. Under Government Code § 12940(m), employers are required to make reasonable accommodations for an employee’s known physical or mental disability unless doing so would impose an undue hardship. Defendants failed to fulfill this duty, providing only a minimal accommodation (a light cover for fluorescent lights) while failing to implement the prescribed break schedule or modify his performance standards to reflect his disability-related limitations. (Compl. ¶¶ 20-24). As a direct and proximate result of Defendants’ failure to accommodate, Plaintiff suffered special damages, prospective damages for lost future earnings, physical sickness, and severe mental and emotional pain and distress. The Complaint sufficiently states facts sufficient to constitute a failure to accommodate claim.

4TH CAUSE OF ACTION FOR FAILURE TO ENGAGE IN THE INTERACTIVE PROCESS:

An employer’s failure to engage in the interactive process that causes harm to a disabled employee or former employee is independently actionable under the Fair Employment and Housing Act (FEHA). (*Miller v. Department of Corrections & Rehabilitation* (2024) 105 Cal.App.5th 261, 276-277; *Shirvanyan v. Los Angeles Community College Dist.* (2020) 59 Cal.App.5th 82, 89.) To state a cause of action for failure to engage in the interactive process, the employee must demonstrate that they had a known physical or mental disability or medical condition, that they requested a reasonable accommodation or that the need for accommodation was obvious, and that the employer must have failed to engage in a timely, good faith, interactive process to determine effective reasonable accommodations. (Govt. Code §12940(n); *Nadaf-Rahrov v. Neiman Marcus Group, Inc.* (2008) 166 Cal.App.4th 952, 978-981.)

Under FEHA, once an employee with a known physical or mental disability requests reasonable accommodation, an employer has an affirmative statutory mandate to engage in a timely, good-faith, interactive process to determine effective reasonable accommodations. Plaintiff informed Defendants of his TBI and resulting physical and mental symptoms. Instead of working interactively with Plaintiff, Defendants used his disability-related performance limitations—such as workflow management issues directly impacted by his TBI—to issue a below-standard evaluation, place him on a

Performance Improvement Plan (PIP), place him on administrative leave, and ultimately terminate his employment. The Complaint sufficiently states facts sufficient to constitute a failure to engage in the interactive process claim.

5TH CAUSE OF ACTION FOR FAILURE TO PREVENT DISCRIMINATION AND RETALIATION:

When a plaintiff seeks to recover damages based on a claim of failure to prevent workplace harassment under Fair Employment and Housing Act (FEHA), she must show three essential elements: (1) plaintiff was subjected to harassment; (2) defendant failed to take all reasonable steps to prevent harassment; and (3) this failure caused plaintiff to suffer injury, damage, loss, or harm. (*Caldera v. Department of Corrections and Rehabilitation* (2018) 25 Cal.App.5th 31, 43.) The Complaint sufficiently states facts sufficient to constitute a failure to prevent discrimination and retaliation claim.

Under California Government Code § 12940(k), an employer has an affirmative duty to take all reasonable steps necessary to prevent discrimination, harassment, and retaliation from occurring in the workplace. Complaint alleged that Defendants County of Riverside (DPSS) and managing officials were fully aware of Plaintiff's TBI and his protected activities and rather than maintaining a discrimination-free environment, Defendants failed to take effective remedial or preventive action. Specifically, Defendants failed to adequately train supervisory and management staff regarding disability protections; failed to investigate Plaintiff's complaints regarding supervisor misconduct and intentionally manipulated work records; and encouraged, tolerated, ratified, and approved retaliatory measures by supervisors against Plaintiff.

6TH CAUSE OF ACTION FOR RETALIATION IN VIOLATION OF FEHA:

The elements of a claim for retaliation under FEHA are "(1) the employee's engagement in a protected activity, i.e. opposing any practices forbidden under this part; (2) retaliatory animus on the part of the employer; (3) an adverse action by the employer; (4) a causal link between the retaliatory animus and the adverse action; (5) damages; and (6) causation." (*Mamou v. Trendwest Resorts, Inc.* (2008) 165 Cal. App. 4th 686, 713.) The Complaint alleged that Plaintiff exercised his statutory rights by taking approved FMLA/CFRA medical leave from April 20, 2023, through June 5, 2023, following a traumatic brain injury. Upon his return from medical leave, Defendants subjected Plaintiff to a pattern of adverse personnel actions, culminating in a below-standard performance evaluation in February 2025, placement on a Performance Improvement Plan (PIP), administrative leave on September 11, 2025, and termination on October 2, 2025. The sharp contrast between Plaintiff's positive 2022 performance review (prior to his injury) and the sudden onset of negative performance evaluations following his medical leave supports an inference that Defendants' stated performance grounds were pretextual and retaliatory. The Complaint sufficiently states facts sufficient to constitute a retaliation in violation of FEHA claim.